

22SMCV01682 22SMCV01682

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 22SMCV01682 Hearing Date: August 11, 2026 Dept: M

CASE NAME: Monte Verde

Consulting Inc., et al., v. Dozier, et al.

CASE NO.: 22SMCV01682

MOTION: Motion

to Set Aside Dismissal of Complaint

HEARING DATE: 8/11/2026

Legal

Standard

Relief under Code of Civil Procedure ("CCP") section

473(b) is either discretionary or mandatory. A motion for mandatory relief must be made no more than six months after entry of judgment and be accompanied by an attorney's sworn affidavit attesting to the attorney's "mistake, inadvertence, surprise or neglect." (CCP § 473(b).) The attorney affidavit of fault must contain a "straight forward admission of fault." (State Farm Fire & Casualty Co. v. Pietak, (2001) 90 Cal.App.4th 600, 610.) But it need not contain an explanation of the reasons for the attorney's mistake, inadvertence surprise or neglect. (Martin Potts & Assocs., Inc. v. Corsair, LLC (2016) 244 Cal.App.4th 432, 438-441.) Relief must be granted "unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (Ibid.) If mandatory relief is granted, the court must "direct the attorney to pay reasonable compensatory legal fees and costs" to the opposing counsel or parties. (CCP § 473(b).)

A motion for relief under section 473(b) "shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted. . ." (CCP § 473(b).) However, this requirement is not jurisdictional; substantial compliance may suffice. (Carmel, Ltd. v. Tavoussi (2009) 175 Cal.App.4th 393, 403 [finding substantial compliance where counsel offered proposed answer at motion hearing rather than serving it with moving papers].)

Analysis

Plaintiffs Monte Verde Consulting Inc., David McKean and Deborah McKean move for an order setting aside the February 11, 2026, order dismissing the Complaint in this action in its entirety.

Plaintiffs show grounds for mandatory relief. Plaintiffs explain that, following judgment against Defendant Riva 48, the Court issued an order to show cause on October 16, 2025, re: dismissal concerning the defaulted Defendants, setting a deadline of February 11, 2026. Plaintiffs prepared default judgment requests for Defendants Brian Dozier and Gracious Ridge. (Hurey Decl., ¶ 5, Ex. 1-2.) Counsel explains that he inadvertently failed to instruct his attorney service to make the filings. (Id., ¶ 5.) He did not attend the status conference scheduled by the Court for February 11, 2026, due to a calendar error. (Id., ¶ 6.) Thus, the dismissal was the result of attorney error.

The Court notes that there is no opposition. The record does not suggest that any other party incurred any legal fees or costs as a result of the dismissal.

Accordingly, the motion is GRANTED.